Brazoria County District Court

Cause No. 2024-CV-0011

Sarah Walters, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Plaintiff's Original Petition

Filed:	September 7, 2024
Plaintiff's counsel:	Laura Bryant, Dunn & Acosta LLP

PARTIES

Plaintiff Sarah Walters is an individual residing in Texas who was the driver of a passenger vehicle involved in the collision described below. Defendant is an automobile insurance company authorized to write personal auto policies in the State of Texas, which issued the policy under which Plaintiff seeks benefits.

FACTS

On April 30, 2024, Plaintiff was lawfully operating his vehicle through a signalized intersection in Sugar Land when another vehicle entered the intersection and struck the side of Plaintiff's vehicle. The impact was a side-impact collision that forced Plaintiff's vehicle to move sharply and caused the occupant compartment to absorb substantial force. Plaintiff reported the collision promptly, submitted a claim under his policy, and provided the information and documentation Defendant requested. Defendant has not paid the amounts owed under the policy for Plaintiff's losses, and the claim remains unresolved.

NEGLIGENCE

Defendant owed Plaintiff a contractual duty under the policy and a duty under Texas law to investigate the claim in good faith, to evaluate it fairly, and to pay covered benefits within the time required by statute. Defendant breached these duties by failing to conduct a reasonable investigation, by delaying or refusing payment without a reasonable basis, and by failing to provide a reasonable explanation for its position. Such conduct violates the Texas Insurance Code and the Texas Deceptive Trade Practices Act, and it proximately cauesd Plaintiff's continuing harm.

DAMAGES

As a direct result of the collision, Plaintiff sustained neck and back strain, resulting in pain, stiffness, limited range of motion, and the need for medical evaluation and treatment. Plaintiff has incurred medical expenses, lost time from work, and ongoing discomfort. Plaintiff seeks recovery of policy benefits, statutory damages, attorney's fees, and court costs. Plaintiff therefore requests judgment against Defendant in the amount of $100,000.00, together with pre- and post-judgment interest as allowed by law.